

25NNCV03697 25NNCV03697

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Case Number: 25NNCV03697 Hearing Date: September 18, 2026 Dept: E

Case No:

25NNCV03697

Hearing

Date: 9/18/2026 – 8:30 a.m.

Trial

Date: 02/22/2027

Case

Name: GERALDINE GUINN, by and through her Successor in Interest, Karla Thompson; KARLA THOMPSON, individually, v. GLEN PARK AT GLENDALE – BOYNTON ST; TILLMAN PINK, JR.; KAREN RADLEY, a nominal defendant; KEITH GUINN, a nominal defendant; and DOES 1 through 100;

TENTATIVE RULING ON DEMURRER

RELIEF REQUESTED

Defendants – (1) Glen Park at Glendale – Boynton St., and (2) Tillman Pink, Jr. – demur to the third (wrongful death) cause of action in the Third Amended Complaint (TAC) for failure to state facts sufficient to constitute a cause of action.

Defendants move pursuant to CCP §§ 430.10(e) & (f).

PROCEDURAL

Moving Party: Defendants – (1) Glen Park at Glendale – Boynton St., and (2) Tillman Pink, Jr.

Responding Party: Plaintiffs – (1) Geraldine Guinn, by and through her Successor in Interest, Karla Thompson and (2) Karla Thompson, individually

Moving Papers: Notice/Demurrer

Opposition Papers: Opposition

Reply Papers: Reply

BACKGROUND

The initial complaint in this action was filed on 5/30/2025.

A first amended complaint (FAC) was filed on 10/6/2025.

Another FAC was filed on 10/31/2025.

On 2/4/2026, this Court heard Defendants' demurrer (with motion to strike) targeted at the FAC.

Further, on 2/4/2026, this Court sustained Defendants' demurrer.

On 3/4/2026, the Second Amended Complaint (SAC) was filed.

On 6/30/2026, this Court OVERRULED Defendants' demurrer targeted at the first cause of action (Elder Abuse & Neglect) and SUSTAINED WITH LEAVE TO AMEND Defendants' demurrer targeted at the third cause of action (wrongful death).

On 7/20/2026, Plaintiffs filed the Third Amended Complaint (TAC).

Plaintiffs – (1) Geraldine Gunn, by and through her Successor in Interest, Karla Thompson and (2) Karla Thompson, individually – allege three causes of action [(1) Elder Abuse and Neglect (Welfare & Institutions Code § 15600, et seq.), (2) Negligence, and (3) Wrongful Death (CCP § 377.60)] against Defendants – (1) Glen Park at Glendale – Boynton St; (2) Tillman Park, Jr.; (3) Karen Radley, a nominal defendant; (4) Keith Guinn, a nominal

defendant; and (5) Does 1 – 100.

Defendants – (1) Glen Park at Glendale – Boynton St., and (2) Tillman Pink, Jr. – now demur to the third cause of action (wrongful death) in the TAC.

PROCEDURAL

Meet and Confer

A party filing a demurrer “shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) “The parties shall meet and confer at least five days before the date the responsive pleading is due. If the parties are not able to meet and confer at least five days prior to the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer.” (CCP, § 430.41, subd. (a)(2).)

Failure to sufficiently meet and confer is not grounds to overrule or sustain a demurrer. (CCP § 430.41(a)(4).)

Here, Defendants’ counsel alleges that a meet and confer occurred. (See Decl. Tran, ¶¶ 2-5.)

LEGAL STANDARD

Demurrer – Sufficiency

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.)

When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) The

court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.

(Code Civ. Proc., §§ 430.30, 430.70.)

The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) “All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-157.)

On demurrer, a trial court has an independent duty to “determine whether or not the ... complaint alleges facts sufficient to state a cause of action under any legal theory.” (Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 734.) Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged but “must dispose of an entire cause of action to be sustained.” (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.) “Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Demurrer – Uncertainty

A special demurrer for uncertainty, CCP section 430.10(f), is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are

directed against him/her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, "ambiguities can be clarified under modern discovery procedures." (Ibid.)

TENTATIVE RULING

Third Cause of Action – Wrongful Death

To prevail on a claim for wrongful death, plaintiffs must prove (1) a wrongful act or neglect on the part of one or more persons (that is, negligence) that (2) causes (3) the death of another person. (Musgrove v. Silver (2022) 82 Cal.App.5th 694, 705 citing Norgart v. Upjohn Co. (1999) 21 Cal.4th 383, 390.)

Defendants

argue that Plaintiffs fail to plead facts sufficient to state a claim for wrongful death because Plaintiffs fail to plead facts establishing a legally sufficient causal connection between any act or omission attributable to these Defendants and Plaintiff's death.

Defendants

cite to Bockrath which explains that when the pleaded facts of negligence and injury do not naturally give rise to an inference of causation, the plaintiff must plead specific facts affording an inference the one caused the others. (Bockrath v. Aldrich Chemical Co., Inc. (1999) 21 Cal.4th 71, 78 citing Christensen v. Superior Court (1991) 54 Cal.3d 868, 900-901.) That is, the plaintiff must allege facts, albeit succinctly as possible, explaining how the conduct caused or contributed to the injury. (Id.)

Here, the

Court does not find

Defendants' argument – that Plaintiffs failed to allege Defendants' neglect was a substantial factor/proximate cause – availing.

In the

Court's prior tentative ruling [See 6/30/2026 Min. Order, p.17] pertaining to the wrongful death cause of action, the Court explained how the last date that Plaintiffs alleged conduct by the Defendants was on January 17, 2025; however, Guinn passed away on July 30, 2025. The Court explained how it failed to see

how the pleaded facts of Defendants' negligence naturally gave rise to an inference of causation when Guinn's death happened over six months after leaving Defendants' facility. (6/30/2026 Min. Order, p. 17.)

Here, in Plaintiffs' TAC, Plaintiffs cure the prior defects, and Plaintiffs state facts sufficient to constitute a cause of action for wrongful death. Particularly, Plaintiffs successfully plead causation.

Plaintiffs' TAC alleges a claim for wrongful death in ¶¶ 92-100 of the TAC. Further, ¶ 92 incorporates prior allegations into the third cause of action (wrongful death).

In ¶¶ 30-37 of the TAC, Plaintiffs sufficiently allege the element of causation in a wrongful death cause of action.

Although Defendants' demurrer also moved pursuant to CCP § 430.10(f) [uncertainty], it does not appear that Defendants made any arguments pertaining to uncertainty. Further, even if they did, the Court would not find them availing. Plaintiffs' third cause of action for wrongful death in the TAC is not uncertain or ambiguous.

Defendants' demurrer to the TAC is OVERRULED.